

SEPARATE OPINION BY M. ANZILOTTI.

[Translation.]

I regret that I am unable to agree with the way in which the judgment views the relation between the two sources of jurisdiction relied upon by the applicant Party. This question is so important and its bearing is so wide that I find myself obliged to explain the reasons for my dissent.

1.—The facts of the situation giving rise to this question are briefly as follows.

On July 29th, 1921, the Bulgarian Government signed a Declaration adhering to the Optional Clause concerning the compulsory jurisdiction of the Permanent Court of International Justice in the following terms:

"On behalf of the Government of the Kingdom of Bulgaria I recognize, in relation to any other Member or State which accepts the same obligation, the jurisdiction of the Court as compulsory *ipso facto* and without any special convention, unconditionally."

This Declaration was ratified on August 12th of the same year.

The Belgian Government signed its Declaration accepting the compulsory jurisdiction of the Court on September 25th, 1925. This Declaration is as follows:

"On behalf of the Belgian Government, I recognize as compulsory, *ipso facto* and without special agreement, in relation to any other Member or State accepting the same obligations, the jurisdiction of the Court in conformity with Article 36, paragraph 2, of the Statute of the Court for a period of fifteen years, in any dispute arising after the ratification of the present Declaration with regard to situations or facts subsequent to this ratification, except in cases where the Parties have agreed or shall agree to have recourse to another method of pacific settlement."

The ratification was deposited on March 10th, 1926.

Article 36 of the Court's Statute to which the two Declarations refer is as follows:

"The jurisdiction of the Court comprises all cases which the parties refer to it and all matters specially provided for in treaties and conventions in force.

The Members of the League of Nations and the States mentioned in the Annex to the Covenant may, either when signing

or ratifying the Protocol to which the present Statute is adjoined, or at a later moment, declare that they recognize as compulsory *ipso facto* and without special agreement, in relation to any other Member or State accepting the same obligation, the jurisdiction of the Court in all or any of the classes of legal disputes concerning :

- (a) the interpretation of a treaty ;
- (b) any question of international law ;
- (c) the existence of any fact which, if established, would constitute a breach of an international obligation ;
- (d) the nature or extent of the reparation to be made for the breach of an international obligation.

The Declaration referred to above may be made unconditionally or on condition of reciprocity on the part of several or certain Members or States, or for a certain time.

In the event of a dispute as to whether the Court has jurisdiction, the matter shall be settled by the decision of the Court."

As a result of these Declarations, an agreement came into existence between the two States accepting the compulsory jurisdiction of the Court, in conformity with Article 36 of the Statute and subject to the limitations and conditions resulting from the declarations, more especially from that of the Belgian Government. This agreement, hereinafter referred to as the Declarations, came into force on March 10th, 1926, the date of the Belgian ratification. The Bulgarian Declaration is made without limitation of time, but the Belgian Declaration being made for a period of fifteen years as from the date of ratification, the duration of the Declarations is until March 10th, 1941.

On the other hand Belgium and Bulgaria, on June 23rd, 1931, signed a Treaty of conciliation, arbitration and judicial settlement which was ratified on February 4th, 1933, and Chapter II of which, entitled "Judicial Settlement", deals, *inter alia*, with recourse to the Court.

The articles of the Treaty of June 23rd, 1931, which should be kept in mind on the one hand for comparison with the text of the Declarations and of Article 36 of the Statute on the other, are in particular Articles 4, 1 and 3. The first directly concerns recourse to the Court ; the other two, which are in Chapter I which is entitled "Pacific Settlement in general", apply to all the procedures contemplated by the Treaty and consequently also to recourse to the Court. These Articles are as follows :

Article 4.—"All disputes with regard to which the Parties are in conflict as to their respective rights shall be submitted for decision to the Permanent Court of International Justice, unless the Parties agree, in the manner hereinafter provided, to have resort to an arbitral tribunal.

It is understood that the disputes referred to above include in particular those mentioned in Article 36 of the Statute of the Permanent Court of International Justice."

Article 1.—"Disputes of every kind which may arise between the High Contracting Parties and which it may not have been possible to settle by diplomacy shall be submitted, under the conditions laid down in the present Treaty, to judicial settlement or arbitration, preceded, according to circumstances, as a compulsory or optional measure, by recourse to the procedure of conciliation."

Article 3.—"1. In the case of a dispute the occasion of which, according to the municipal law of one of the High Contracting Parties, falls within the competence of its judicial or administrative authorities, the Party in question may object to the matter in dispute being submitted for settlement by the different methods laid down in the present Treaty until a decision with final effect has been pronounced within a reasonable time by the competent authority.

2. In such a case, the Party which desires to resort to the procedures laid down in the present Treaty must notify the other Party of its intention within a period of one year from the date of the aforementioned decision."

This treaty, hereinafter called the Treaty, was concluded for a period of five years as from the date of exchange of ratifications and was to be automatically renewed for successive periods of five years unless denounced at least six months before the expiration of a five year period. It was denounced by the Bulgarian Government on August 3rd, 1937, and thus expired on February 4th, 1938.

The Application of the Belgian Government was filed on January 25th, 1938, that is to say before the date of expiration of the Treaty; the question therefore arises which of the rules of the Declarations and of the Treaty are applicable to it; in other words whether the Declarations, or the Treaty, or both are to be taken as the basis in examining the question whether the Court can entertain the Application and adjudicate upon the merits of the case. It is with regard to this question that I find it impossible to agree with the standpoint adopted in the judgment.

In my opinion, when the Belgian Government's Application was filed, only the Treaty was applicable between the two States, and it is on the basis of the Treaty and of the Treaty alone that it has to be decided whether the Court can entertain the Application and adjudicate on the merits.

2.—Before setting out my arguments, one observation is necessary.

The Belgian Government relies upon both the Declarations and the Treaty in order to establish the jurisdiction of the

Court to adjudicate upon its Application. It is not quite clear whether that Government relies upon them both equally or whether it places more reliance on one than on the other, and if so which: in the course of the written proceedings and more especially in the oral proceedings, there were signs of some indecision on the point, so that it is difficult to form an absolutely definite opinion on this subject. I regard it however as certain that the Belgian Government holds that it can rely on both sources of the Court's jurisdiction.

As for the Bulgarian Government, in its Memorial it disputed the jurisdiction of the Court under either the Declarations or the Treaty; and at the oral proceedings its Agent positively maintained, contrary to certain observations of Counsel for the Belgian Government, that the coming into force of the Treaty had not suspended the operation of the Declarations. It may therefore be said that both the Parties consider that the Declarations and the Treaty are alike applicable in this case.

It appears to me certain however that this attitude on the part of the Parties can neither dispense the Court from itself examining and answering the purely legal question of the relation between the two sources of its jurisdiction nor in any way restrict its freedom in this respect.

The position would perhaps be different if the agreement between the Parties had been in regard to the question whether the Court has jurisdiction or not. But here the situation is quite otherwise: the Belgian Government maintains and the Bulgarian Government denies that the Court has jurisdiction. The agreement, if we can call it an agreement, only relates to the sources of law to be applied. Such an agreement, which clearly results from the way in which each Party views the interests of its own defence, is of no importance for the Court.

3.—If we compare the text of the Declarations, which, together with Article 36 of the Statute, determine the content of the Agreement concluded between the two Governments, with the articles of the Treaty reproduced above, it is easy to see that these constitute two conventions between the Belgian Government and the Bulgarian Government which lay down different rules for the same thing, namely recourse to the Court.

Confining myself to the points of most importance in this case, I would make the following observations.

Under a clause of the Belgian Declaration which, by virtue of the condition of reciprocity, is binding as between the Parties, the Declarations except from the compulsory jurisdiction of the Court disputes which, though falling under one or more of the categories set out in Article 36 of the Statute and arising subsequent to the ratification of the Declaration, have

not arisen "with regard to situations or facts subsequent to this ratification". The Treaty does not make this reservation: all disputes of this kind which may arise after ratification, definitely fall within the Court's jurisdiction, as defined in Article 4, even if they have not arisen "with regard to situations or facts subsequent to this ratification".

On the other hand, the Treaty makes recourse to the Court subject to the conditions laid down in Articles 1 and 3, namely: in all cases there must have been preliminary diplomatic negotiations which have proved unsuccessful and, in certain cases, there must exist a decision with final effect rendered by the competent judicial or administrative authorities. The Declarations do not make these conditions; the interested Party cannot therefore rely upon them to prevent the submission of the case to the Court. I leave aside the question whether, and within what limits, any analogous rules of general international law might be invoked against recourse to the Court under the Declarations. It is clear in any case that that is something quite different from the application of Articles 1 and 3 of the Treaty.

It follows that there are or may be cases where recourse to the Court is permitted by the Treaty but not by the Declarations, and cases where recourse to the Court is possible under the Declarations but not under the Treaty.

It is clear that, in the same legal system, there cannot at the same time exist two rules relating to the same facts and attaching to these facts contradictory consequences. It is for instance impossible that the relations between two States should be governed at one and the same time by a rule to the effect that, if certain conditions are fulfilled, the Court has jurisdiction and by another rule laying down that, if the same conditions are fulfilled, the Court has no jurisdiction—by a rule to the effect that in certain circumstances the State concerned may have recourse to the Court and by another to the effect that in the same circumstances the State has no right to do so, etc., etc. In cases of this kind, either the contradiction is only apparent and the two rules are really coordinated so that each has its own sphere of application and does not encroach on the sphere of application of the other, or else one prevails over the other, i.e., is applicable to the exclusion of the other. I know of no clearer, more certain, or more universally accepted principle than this.

To decide whether a contradiction between two rules is only apparent and how they should be co-related to one another, or to determine which of two contradictory rules applies to the exclusion of the other, is among the most important and most

difficult tasks in the interpretation of legal texts. It is precisely this task which confronts the Court in the present case.

4.—The Treaty being of later date than the Declarations, it is in the text of the former that we must seek the intention of the Parties in regard to rules previously in force.

In this connection Article 4 of the Treaty seems to me of decisive importance.

This Article, having in its first paragraph formulated the general rule that all disputes with regard to which the Parties are in conflict as to their respective rights shall be submitted for decision to the Permanent Court of International Justice, lays down in paragraph 2: "It is understood that the disputes referred to above include in particular those mentioned in Article 36 of the Statute of the Permanent Court of International Justice."

It follows, in the first place, that all disputes, without exception, which may be submitted to the Court under the Declarations, may henceforward be submitted to it under the Treaty. Whilst the clause in the first paragraph: "disputes with regard to which the Parties are in conflict as to their respective rights", may possibly extend beyond the classes of disputes in Article 36 of the Statute, it is altogether out of the question that any dispute falling within the classes of Article 36 of the Statute, shall not be included in Article 4 of the Treaty. It also follows that the disputes mentioned in Article 36 of the Statute and therefore forming the subject-matter of the Declarations, are henceforth disputes "included" in Article 4 of the Treaty: "... the disputes referred to above include in particular those....". This amounts to saying that they are disputes to which Article 4 is applicable as well as the other articles of the Treaty which apply to the disputes referred to in Article 4.

Accordingly, the Treaty covers all disputes contemplated in the Declarations and subjects them to its specific rules.

This interpretation, which appears to follow naturally from the text of Article 4, seems to me to be in perfect accord with the intention of the Parties when they concluded their Treaty of conciliation, arbitration and judicial settlement. Both States proposed to adopt a number of pacific methods of "settling all international disputes"; thus, the system was to be complete and one in which every class of dispute was to receive the treatment best suited to it. Since the disputes mentioned in Article 36 of the Court's Statute are an important part of the disputes contemplated by the Treaty, nothing was more natural than to extend to those disputes the system of rules and

safeguards which the contracting Parties thought necessary or expedient for the attainment of their purpose.

If, for example, they thought that the judicial settlement of a dispute might usefully be preceded by diplomatic negotiations, why should they not have extended this rule to the disputes mentioned in Article 36? If it seemed just or opportune in certain cases to give the interested Party a right to object to the method of settlement laid down in the Treaty being employed until a decision with final effect had been pronounced by the competent judicial or administrative authority, it was only natural to apply that rule also to the disputes mentioned in Article 36, whenever those disputes present the features in view of which the rule was adopted.

On the other hand, it was necessary to ensure that any limitation or reservation which the contracting Parties, or one of them, might have attached to their acceptance of the Court's compulsory jurisdiction under Article 36 of the Statute, should not take effect during the current period of the Treaty. For, by excluding from the jurisdiction of the Court certain of the disputes mentioned in Article 36 or by subordinating that jurisdiction to other conditions than those contemplated in the Treaty, the said limitations or reservations would have created a class of disputes not compulsorily subject to pacific settlement, whereas the purpose of the Treaty, as appears *ipsis verbis* in Article 1, was to ensure the settlement of all disputes that might arise between the two States.

It appears evident, therefore, that the rule approved in Article 4, paragraph 2, of the Treaty, as I understand it, namely, as comprising within this Article, and thus making subject to the Treaty, the disputes mentioned in Article 36 of the Statute of the Court, is only a logical consequence of the purpose and plan of this Treaty.

5.—Since the Treaty covers all disputes referred to in the Declarations, the question arises whether the latter must not be held to have been abrogated by the Treaty.

There was no express abrogation. But it is generally agreed that, beside express abrogation, there is also tacit abrogation resulting from the fact that the new provisions are incompatible with the previous provisions, or that the whole matter which formed the subject of these latter is henceforward governed by the new provisions.

I consider that it would be difficult to resist the argument in favour of tacit abrogation, were it not for the following circumstance.

The Declarations and the Treaty have not the same period of validity, nor an indefinite period. As has already been seen,

the periods of duration of the Declarations and of the Treaty were such that the life of the Declarations continued beyond that of the Treaty. It follows that the coming into force of the Treaty did not entirely do away with the *raison d'être* of the Declarations: this *raison d'être* ceased for so long as the Treaty should be in force; but it revived as soon as the Treaty should terminate. On the other hand, a treaty whose purpose was to extend and strengthen the peaceful settlement of disputes between the two States cannot be deemed to have intended to set aside, save in so far as was strictly necessary, an agreement which, in a more limited way, pursued the same object. While it is true that once the Treaty had come into force, it left no room for the application of the Declarations, it is also true that it had no need to suppress them.

In these circumstances, it is not the abrogation of the Declarations, but its temporary suspension which we must consider to be the effect of the coming into force of the Treaty. It follows that the expiration of the Treaty eliminated the obstacle standing in the way of the application of the Declarations. The latter, never having ceased to be in force, again became applicable at the same moment as the Treaty terminated, namely March 4th, 1938.

The conclusion is that, at the moment when the Belgian Government's Application was submitted (Jan. 26th, 1938), only the Treaty was applicable. Consequently, the soundness of the objection to the jurisdiction raised by the Bulgarian Government must be appreciated on the basis of the Treaty alone.

6.—Before proceeding to this examination, it may be well to make clear what are the claims of the Belgian Government against which the objection is directed.

The latter Government formulated its claims in the Application under two heads, *A* and *B*. The purpose of the claim under *A* is to obtain from the Court a judgment declaring that, owing to certain acts, Bulgaria has failed in its international obligations towards Belgium; that under *B* concerns reparations in respect of these alleged failures. This latter claim which, in the Memorial, is divided into two—letter *B* relating to *restitutio in pristinum* and letter *C* to reparation of damage sustained—is without importance at the present stage of proceedings.

The alleged failure by Bulgaria to observe its international obligations is indicated under three numbers in claim *A*: (1) concerns the bringing into effect by the State Mines Administration on November 24th, 1934, of a special artificial tariff for coal supplied to electric power stations; (2) concerns the judgments rendered by the Regional Tribunal and by the Sofia

Court of Appeal on October 24th, 1936, and March 27th, 1937, respectively; (3) concerns the promulgation of the law of February 3rd, 1936, of which Article 30 (c) establishes a special tax on the distribution of electric current purchased from undertakings not subject to the tax.

It must however be pointed out that complaint is made against the tariff of November 24th, 1934, only because its object is alleged to have been to enable the Municipality of Sofia wrongly to apply the awards of the Mixed Arbitral Tribunal of 1923 and 1925. As complaint is also made against the judgments of the Regional Tribunal and of the Sofia Court of Appeal on the ground that they deprived the Company of the benefit of these awards of the Mixed Arbitral Tribunal, it seems evident that there is here one single alleged breach of Bulgaria's international obligations, consisting at one time of acts of the administrative authorities (1), and at another time of acts of the judicial authorities (2). While making every reservation as to what were the international obligations thus violated by the Bulgarian administrative and judicial authorities, it is therefore possible to regard Nos. 1 and 2 of conclusion A, so far as the Court's jurisdiction is concerned, as one single claim.

On the other hand (3) which relates to an alleged discrimination in the imposition of taxes does not concern the awards of the Mixed Arbitral Tribunal or the obligations resulting therefrom for the Bulgarian Government. It must therefore be dealt with separately even in connection with the Court's jurisdiction.

Thus there are two claims, the first being Nos. 1 and 2 and the second No. 3 of conclusion A. This seems to be in accordance with the statements of the Applicant.

Against the possibility of the Court's giving judgment on these claims, the Bulgarian Government, if I am not mistaken, puts forward three arguments based on the Treaty: the Belgian Government's claims, or at any rate the first of these, are said not to fall within the category of disputes which, under Article 4, are to be submitted to the Court; the condition laid down by Article 3 is not fulfilled as regards either the first or the second claim; finally, as regards the second claim, the condition required by Article 1 is lacking.

7.—It is not easy to say exactly what is the objection which the Bulgarian Government claims to draw from the matter of the dispute before the Court. It would appear, however, that it may be summed up as follows: the right which the Belgian Government denies to the Bulgarian Government is, in reality, the right of Bulgarian courts to try disputes between a Belgian

company that is a concessionaire of public undertakings in Bulgaria, and a Bulgarian Municipality; now this right is inherent in the sovereignty of the State and falls within Bulgaria's exclusive jurisdiction, and the Belgian Government cannot invoke the Treaty of 1931 in order to come before the Court.

If that really is the Bulgarian Government's objection, it seems to me certain that it is not a preliminary objection against the Court's jurisdiction, but a defence on the merits. A preliminary objection is an objection of which the purpose and the effect are to prevent the continuance of proceedings before the Court, without prejudging the question whether the right claimed by the Applicant exists or not. Now it is clear that if the Court gave a decision on the Bulgarian objection, it would in reality be admitting or denying the right claimed by Bulgaria, without having heard the merits.

This objection cannot therefore be upheld, for it is not of the nature of a preliminary objection. It is hardly necessary to add that the Bulgarian Government is quite free to put forward its argument during proceedings on the merits.

8.—The Bulgarian Government's second complaint is based upon Article 3 of the Treaty, which says: "In the case of a dispute the occasion of which, according to the municipal law of one of the High Contracting Parties, falls within the competence of its judicial or administrative authorities, the Party in question may object to the matter in dispute being submitted for settlement by the different methods laid down in the present Treaty until a decision with final effect has been pronounced within a reasonable time by the competent authority." It has already been said that this complaint is directed against both the first and the second of the Belgian Government's claims. It should, however, be examined separately in respect of each.

A. It is agreed between the Parties that, at the time when the Application was submitted, the Tribunal of first instance and the Sofia Court of Appeal had already adjudicated upon the claims of the Sofia Municipality and the Belgian Company, but that the Court of Cassation with which the Company had lodged an appeal on June 23rd, 1937, did not deliver its judgment until March 16th, 1938—that is, after the filing of the Application. The Belgian Government does not deny that the judgment was pronounced within a reasonable time.

The Parties agree that the dispute between the Municipality of Sofia and the Belgian Company, which forms the subject of the present dispute between Belgium and Bulgaria, falls within the competence of the Bulgarian authorities.

The Belgian Government does not claim that the Bulgarian Government did not comply with Article 3 of the Treaty in

objecting to the dispute being submitted to the Court. It alleges, however, either that the condition laid down in Article 3 was already fulfilled on January 26th, 1938; or that, following denunciation of the Treaty by Bulgaria, Belgium was not obliged to await its fulfilment; or, finally, that, since the effect of the condition is purely suspensory, it cannot be invoked now that the Court of Cassation has given a decision with final effect.

In my opinion none of these arguments holds.

(a) The contention that the condition required by Article 3 of the Treaty was already fulfilled on January 26th, 1938, was upheld, if I remember rightly, from two points of view. Firstly, it was argued that the matter needed only to have been submitted to the highest national court; it was not necessary that that court should have delivered judgment. Secondly, and with greater force, it was urged that, since the appeal to the Court of Cassation was a remedy of an exceptional nature, it could not prevent the judgment of the Court of Appeal being regarded as the decision with final effect within the meaning of Article 3 of the Treaty.

As regards the first point, irrespective of whether there may be cases in which the rule of international law commonly known as the "local redress rule" is complied with by the mere submission of a case to the highest jurisdiction in the land, I do not see how this plea could be accepted in the face of a treaty text which requires a "decision with final effect". Either the judgment given by the Court of Appeal is such a decision, or the existence of such decision must be awaited. The mere fact of having applied to the supreme jurisdiction does not here carry any weight.

Indeed, the representatives of the Belgian Government relied mainly upon the alleged finality of judgments given by the Court of Appeal.

The question depends, firstly, upon the meaning that is to be attached to the words "decision with final effect" in Article 3 of the Treaty and, secondly, upon the force and effects of judgments given by the Court of Appeal under the municipal law of the country in which those judgments are given. The first matter is a question of treaty interpretation and thus of international law; the second a question of Bulgarian law.

In order to determine the meaning of the words "decision with final effect", we have to ascertain what the Parties had in view when they laid down the stipulations of Article 3 of the Treaty. In my opinion they wanted to enable the interested State to prevent an international dispute from arising as long as there was a means of removing its cause through a decision by the national authorities. It follows that no "decision with final effect", as required by Article 3, has been

given until the adopted decision can no longer be altered, at any rate so far as concerns the matters capable of leading to an international dispute. A decision which can be amended, cancelled, or replaced by another is not the decision contemplated by the Parties, whatever colour may be given to it by the municipal law of the country in which it was issued.

It is agreed that, under Bulgarian law as under the law of several other countries, for as long as there is the possibility of an appeal to the Court of Cassation or as long as such appeal is pending, a judgment by an appeal court is one that can be cancelled and replaced by another judgment which, in fact as well as in law, may be absolutely different. Should the Court of Cassation quash the judgment appealed against, the whole case reverts absolutely to the condition in which it stood immediately after the judgment by the lower court; a new case on appeal is heard, involving a re-examination of the facts and of the law, ending in a judgment that may be altogether different from the previous one.

In view of these circumstances, I really do not see what importance can be ascribed, either to the exceptional character given by Bulgarian and other law to the appeal to a court of cassation, for reasons and from considerations which have nothing to do with the question before us; or to the fact that, for similar considerations, the sentence by the Court of Appeal is described as final or given by the last instance; or again, to the fact that the Court of Cassation pronounces only upon questions of law, etc., etc. The one important point is that the judgment by the Court of Appeal, from which appeal is lodged with the Court of Cassation, is a judgment which may be cancelled and replaced by another quite different judgment; that is exactly the contrary of what the Parties desired when they required a "decision with final effect".

(b) The second argument, namely, that the denunciation of the Treaty by the Bulgarian Government released the Belgian Government from the duty of awaiting the result of the recourse to cassation, is based mainly upon the consideration that, since the Treaty was about to expire, it became impossible to submit the Application.

This argument seems to me no better founded than the first argument. If the Bulgarian Government had the right to denounce the Treaty, it was perfectly natural that the Belgian Government should be rendered incapable of benefiting by it. It is impossible to describe as *force majeure* what was really only a consequence of the exercise by the Bulgarian Government of its right of denunciation.

True, the representatives of the Belgian Government alluded cautiously to an abuse of right said to have been committed

by the Bulgarian Government when it denounced the Treaty in order to remove from the jurisdiction of this Court the case which the Belgian Government was proposing to submit.

The theory of abuse of right is an extremely delicate one, and I should hesitate long before applying it to such a question as the compulsory jurisdiction of the Court. The old rule, a rule in such complete harmony with the spirit of international law, *Qui iure suo utitur neminem lædit*, would seem peculiarly applicable. The Bulgarian Government was entitled to denounce the Treaty and was sole judge of the expediency or necessity of doing so.

The situation might be somewhat different if the Bulgarian Government, being free to denounce the Treaty at any time, had chosen the particular moment at which it had been informed of the Belgian Government's intention to apply to the Court. But that is not the case. At the time when it learnt of the Belgian Government's decision, the Bulgarian Government had only a few days in which to denounce the Treaty under Article 37, Nos. 2 and 3, if it did not wish to be bound for a further period of five years.

Finally, the Treaty once expired, the Belgian Government was still able to apply to the Court under the Declarations. And the Belgian Government, by basing its application not only on the Treaty but also on the Declarations, showed its belief that those Declarations empower the Court to adjudicate on the present question. There was therefore no *periculum in mora*.

(c) There remains only the argument that the local redress rule, being of a suspensory character, can no longer be invoked now that the Court of Cassation has delivered its judgment.

I do not deny that the so-called local redress rule, when invoked by one of the parties to a case, may on occasions simply serve to suspend proceedings; this will probably be the case if the rule is invoked as an objection to the merits.

But in this case, the Court is not confronted with a rule of common international law; it is dealing with a specific and formal provision, Article 3 of the Treaty, which it is required to apply. And this Article grants to the interested Party the right to "object to the matter in dispute being submitted" to the Court. It is therefore absolutely certain that we are concerned with a condition governing application to the Court and that the condition has to be fulfilled at the time when the Court is applied to.

The objection by the Bulgarian Government is therefore well-founded in respect of the first claim of the Application.

B. On the other hand, the objection appears to me to be ill-founded in respect of the second claim in the Application, viz., the promulgation of the law of February 3rd, 1936, imposing a special tax on the distribution of electric power purchased from concerns not subject to the tax.

In reply to the Belgian Government's objection that there is no remedy against the acts of the legislative authority, the representatives of the Bulgarian Government merely declared that there is such remedy against the application of the law.

Making every reservation as to whether the mere promulgation of a law like the Bulgarian law of February 3rd, 1936, can constitute a breach of international obligations as claimed by Belgium, there is no denying that the Application refers to the promulgation of the law, and to its promulgation only. It is certain, however, that Bulgarian law, like the laws of nearly all, if not all, countries, knows of no remedy against promulgations of a law. Article 3 of the Treaty does not therefore apply.

9.—The third complaint of the Bulgarian Government is based on Article 1 of the Treaty, according to which only disputes "which it has not been possible to settle by diplomatic means" shall be submitted for settlement by the different methods laid down in the Treaty.

The Bulgarian Government admits that, in regard to the points forming the subject of the Application's first claim (submission A (1) and (2)), there were diplomatic negotiations and that they led to no result; this complaint therefore does not concern the said claim.

With regard to the second claim (submission A (3)), the Bulgarian Government declared in its Memorial that the claim relating to the text established by the law of 1936 was an entirely fresh one and that no attempt had ever been made to settle it by the diplomatic means referred to in Article 1 of the Treaty.

The Belgian Government's Supplementary Memorial appears to admit that there were no diplomatic negotiations on this point. It merely replies that, according to the Court's jurisprudence, the Belgian Government needed only to determine, after the failure of its representations made in regard to the decisions given by the Bulgarian courts, that it was useless to enter into special negotiations regarding the complaint based on the fiscal law of 1936, a complaint notified to it by the Company "subsequently".

At this point, therefore, it could be taken as established that the Belgian Government's second claim had not formed the subject of diplomatic negotiations.

During the oral proceedings the Belgian Government's Agent reverted to this point and said that, in the course of the many

diplomatic representations made by his Government, these secondary grounds of complaint had also been mentioned, and he offered to produce evidence of this fact if the Court thought it desirable.

In view of the summary character of the procedure mentioned in Article 62 of the Rules and the formal provisions contained in Nos. 2 and 3 of that Article with regard to evidence, I doubt very much indeed whether the Court could have accepted the offer made in the circumstances referred to above by the Agent for the Belgian Government. In any event I can only state that the evidence was not furnished and that the Belgian Government's claim does not fulfil the condition required by Article 1 of the Treaty.

10.—My opinion may be summarized as follows.

The entry into force of the Belgo-Bulgarian Treaty of June 23rd, 1931, suspended for the whole term of the Treaty, namely, from February 4th, 1933, until February 4th, 1938, the applicability of the Agreement resulting from the Belgian and Bulgarian Declarations accepting the Court's compulsory jurisdiction in accordance with Article 36 of its Statute.

At the time when the Belgian Government filed its Application, the Treaty was still in force. It follows that the Application was required to fulfil the conditions laid down in the Treaty and that it is on that basis that we have to appraise the justice of the preliminary objection to jurisdiction lodged by the Bulgarian Government.

In as much as that Government pleads that the first claim of the Belgian Government (submission A (1) and (2)) does not fulfil the condition laid down in Article 3 and that the second claim (submission A (3)) does not fulfil the condition laid down in Article 1 of the Treaty, the objection is well-founded. The Court should have accepted it and disclaimed jurisdiction.

I need scarcely add that the Belgian Government could have submitted a fresh application based this time upon the Belgian and Bulgarian Declarations accepting the Court's compulsory jurisdiction, Declarations that became again applicable in relations between the two States from February 4th, 1938, onwards.

(Signed) D. ANZILOTTI.